

25STCV24668 25STCV24668

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F02%2F2026

Source SHA-256: f0edeee85ebfd695259716fa7cf71348185f59a2151b47c4d919680c49f8c449

Case Number: 25STCV24668 Hearing Date: July 2, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 2, 2026

Case Name: Rosamond Ranch, LP v. Robison, et al.

Case No.: 25STCV24668

Matter: Motion for Trial Preference

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On August 21, 2025, Plaintiffs Rosamond Ranch, LP, Calitex, LLC, Elias Shokrian, and Derek Boisse filed a Complaint for (1) legal malpractice, (2) breach of contract, and (3) breach of fiduciary duty.

On June 30, 2026, the Court allowed the filing of a first amended complaint in order to (a) remove previously dismissed defendants; (b) clarify specific factual allegations regarding the entry of the default judgment in the underlying action; and (c) plead damages with greater specificity by identifying a claim for lost rent in the amount of \$2,226,794.44, and aligning the prayer for relief among the remaining defendants.

The trial date is November 6, 2028.

Plaintiff now seeks a trial preference because he “is over the age of 70 and currently 81 years old; 2. Plaintiff suffers from multiple ongoing medical conditions, including hypertension, hyperlipidemia, elevated blood sugar, gout, and stress-related health complications exacerbated by the ongoing litigation; . . . Absent trial preference, Plaintiff faces a substantial risk that his advanced age and fragile and deteriorating state of his health will impair his ability to meaningfully participate in trial proceedings currently scheduled for November 6, 2028, thereby prejudicing his substantial interests in this litigation.”

Code Civ. Proc. § 36(a) states, “A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.”

While the Plaintiff, Elias Shokrian, is 82 years old and has provided a physician's note concerning hypertension and anxiety, the Plaintiff has failed to show that these chronic, controlled conditions require an expedited trial to avoid prejudice. Unlike the plaintiff in *Fox v. Superior Court* (2018) 21 Cal.App.5th 529, who faced immediate incapacity and severe, debilitating side effects from cancer treatment, Mr. Shokrian has not provided evidence that his current health prevents him from meaningfully participating in trial proceedings on the standard schedule.

The physician's recommendation explicitly advises Mr. Shokrian to “minimize his litigation activity” to avoid stress that could trigger serious cardiovascular events. Advancing this trial date to occur within 120 days would have the opposite effect, forcing an intensive, compressed discovery and trial schedule.

Lastly, granting a preference at this stage, when a FAC is about to be filed, would unfairly truncate discovery and prejudice the Defendants' due process rights. Defendants have not yet had sufficient opportunity to complete discovery or file potential dispositive motions, such as for summary judgment, which is critical in a complex legal malpractice action.

Therefore, the Motion is denied.

Moving party to give notice.